

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAN HAI LINES, LTD. AND WAN HAI LINES (USA) LTD. -
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-16

Served: April 4, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

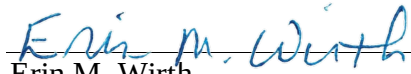
ORDER GRANTING MOTION FOR CONTINUANCE IN PART

On April 1, 2022, the parties jointly filed a motion requesting a sixty-day continuation of all dates to finalize settlement discussions. Motion at 1. The parties state that they are “close to reaching a final agreement on the terms of such settlement” and that there are two depositions that need to be scheduled. The parties propose revised dates that would schedule the last brief for filing on August 3, 2022.

This is an expedited proceeding with the initial decision due by June 30, 2022. The requested extension is one-third of the time allotted for the proceeding. Moreover, the parties were given a two-week extension previously and were informed that “due to the expedited nature of this proceeding, no further extensions will be permitted.” The parties are encouraged to discuss settlement, however, an extended delay to reach a final agreement is not justified. The parties will be granted a three-week extension. If they have not resolved the proceeding, they will need to complete discovery and briefing. If they do reach an agreement, they should file a copy of the settlement agreement and a motion requesting its approval.

Accordingly, it is hereby **ORDERED** that the motion for a continuance be **GRANTED IN PART AND DENIED IN PART**. The schedule is modified to the following deadlines:

April 25, 2022	Depositions to conclude;
April 28, 2022	Last day to serve discovery requests;
May 5, 2022	End of discovery;
May 16, 2022	Parties submit joint stipulations of facts and joint appendix;
May 26, 2022	BOE’s brief, findings of fact, and appendix deadline;
June 16, 2022	Respondents’ brief, findings of fact, appendix, and response deadline;
June 24, 2022	BOE’s reply brief deadline.


Erin M. Wirth
Chief Administrative Law Judge